

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DILLON DESANE,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER
DENISTON WILLIAMS, Shield No. 7208,
POLICE OFFICER MICHAEL HEINZ,
Shield No. 9897, POLICE OFFICER
CARLOS AVILES, Shield # 3669,
SERGEANT AMANDA SZOT, Shield #
5413, and POLICE OFFICER JOHN DOE
"PHONE CALL" # 1, JOHN DOES #2-10
(names and number of whom are unknown at
present), and other unidentified members of
the New York City Police Department,

Defendants.

SUMMONS

Index No.:

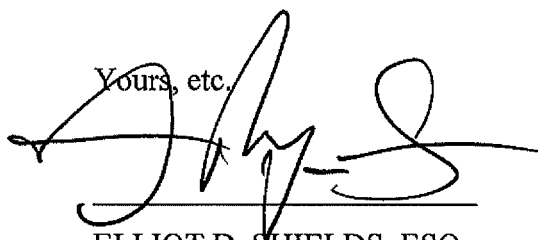
The Basis of Venue is:
Location of IncidentPlaintiff designates Kings County
as the place of trial.**JURY TRIAL DEMANDED****To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York

December 3, 2018

Yours, etc.



ELLIOT D. SHIELDS, ESQ.
ROTH & ROTH LLP
Attorneys for Plaintiff

192 Lexington Avenue, Suite 802
New York, New York 10016
(212) 425-1020

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER DENISTON WILLIAMS, Shield No. 07208, POLICE OFFICER
MICHAEL HEINZ, Shield No. 9897, POLICE OFFICER CARLOS AVILES, Shield #
3669, SERGEANT AMANDA SZOT, Shield # 5413 Police Service Area 8 Precinct, 2794
Randall Ave, Bronx, NY 10465

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DILLON DESANE,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER
DENISTON WILLIAMS, Shield No. 07208,
POLICE OFFICER MICHAEL HEINZ,
Shield No. 9897, POLICE OFFICER
CARLOS AVILES, Shield # 3669,
SERGEANT AMANDA SZOT, Shield #
5413 and POLICE OFFICER JOHN DOE
"PHONE CALL" # 1, JOHN DOES #2-10
(names and number of whom are unknown at
present), and other unidentified members of
the New York City Police Department,

Defendants.

Index No.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, DILLION DESANE, by his attorneys, ELLIOT D. SHIELDS, ROTH & ROTH, LLP, as and for his Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiffs' rights under the First, Fourth, and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. §§ 1983 and 1988, and under the laws of the State of New York. Plaintiffs seek compensatory damages, punitive damages and attorney's fees.

PARTIES

2. Plaintiff, DILLON DESANE, is a resident of Bronx County, City and State of New York.

3. Defendant CITY OF NEW YORK ("CITY") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant CITY assumes the risks incidental to the maintenance of a police force

and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

4. POLICE OFFICER ("P.O.") DENISTON WILLIAMS ("WILLIAMS") (Shield No. 07208), P.O. MICHAEL HEINZ ("HEINZ") (Shield No. 9897), P.O. CARLOS AVILES ("AVILES") (Shield # 3669), SERGEANT AMANDA SZOT (Shield No. 5413) ("SZOT"), POLICE OFFICER JOHN DOE "PHONE CALL" # 1 ("JOHN DOE PHONE CALL"), and JOHN DOES # 2-10 ("John Does") (collectively, "Defendant POLICE OFFICERS," individually, "Defendant POLICE OFFICER"), are and were at all times relevant herein, officers, employees and agents of the NYPD.

5. Upon information and belief, JOHN DOE PHONE CALL is a male African American police officer that wears seeing glasses who assigned to Police Service Area 8.

6. The defendant NYPD officers are being sued in their individual and official capacities.

7. At all times relevant herein, the individual NYPD defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the Defendant CITY OF NEW YORK, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

8. The individual NYPD defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff's rights.

9. At all relevant times, the individual defendants were engaged in joint ventures, assisting each other in performing the various actions described herein and lending their physical presence in support and the authority of their offices to one another.

10. Plaintiff, in furtherance of his State causes of action, filed a Notice of Claim and an Amended Notice of Claim against the CITY OF NEW YORK.

11. Because his two criminal prosecutions underlying this action and his Notice of Claim were not going to conclude prior to the one-year and 90-day statute of limitations for his State causes of action, on August 29, 2018, the Comptroller of the City of New York stipulated and agreed that "Claimant may commence an action against the City on [Claim Number

2017PI029052] within the applicable statute of limitations prior to the City conducting a hearing or physical examination of claimant pursuant to GML § 50-h.”

12. More than thirty (30) days have elapsed since said Notice of Claim was filed and the CITY OF NEW YORK has failed to pay or adjust the claim.

13. This action is being brought within a year and 90 days of the event giving rise to Plaintiff’s State causes of action.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

A. September 4, 2017 Incident

16. On September 4, 2017, Plaintiff Mr. Desane resided in a two-bedroom apartment in the building known as at 2798 Randall Avenue, Bronx, New York (“the apartment”).

17. On September 4, 2017, Plaintiff Mr. Desane resided in one of the two bedrooms in the apartment, and Kevin Vasquez (“Kevin”) and his girlfriend Denise Brito (“Denise”) resided the other bedroom.

18. On September 4, 2017, at approximately 9:40 p.m., Mr. Desane was present in the living room area of the apartment with an acquaintance named “Jenny.”

19. On September 4, 2017, at approximately 9:40 p.m., Kevin assaulted Denise inside of their bedroom.

20. Jenny called 911 to report that Kevin had assaulted Denise.

21. Denise and Kevin—both naked—then ran out apartment and down the hallway in the common area of the building.

22. Upon information and belief, Kevin assaulted Denise in the hallway, causing her to lose consciousness and fall to the floor—naked—in the hallway in the common area of the building.

23. Upon information and belief, Kevin then attempted to flee the building—naked—but was stopped and arrested by NYPD officers from Police Service Area 8 (“PSA 8”), which is an NYPD Housing Bureau precinct located in the same building complex as the apartment.

24. Kevin was then transported to PSA 8 and placed in a holding cell.
25. Police and EMS arrived at the building and found Denise in the hallway in the common area of the building.
26. Thereafter, AVILES, WILLIAMS, SZOT, and several John Does arrived at the apartment, knocked on the door, and demanded to be let in.
27. When the officers arrived, Mr. Desane was alone in the apartment.
28. Mr. Desane answered the door and stated that he was going to record Defendants' search of the apartment on his cell phone.
29. As Mr. Desane attempted to record defendants, SZOT stated that Mr. Desane was not going to record them.
30. SZOT instructed AVALIES to arrest Mr. Desane.
31. AVALIES immediately grabbed Mr. Desane and slammed his body forcefully into a wall.
32. AVALIES and other officers then placed handcuffs upon Mr. Desane's wrists.
33. AVALIES and the other officers then walked Mr. Desane to PSA 8, a NYPD Housing Bureau precinct located in the same building complex as the apartment.
34. At no time did Mr. Desane commit any crime or violate the law in any way.
35. Upon information and belief, Mr. Desane was arrested pursuant to the NYPD's continuing practice or custom of arresting innocent persons without probable cause and/or using force without justification against said persons, in retaliation for said persons exercising their First Amendment right to record the police performing official duties.
36. Mr. Desane was then placed in a cell by himself, which was adjacent to the cell in which Kevin was being held.
37. Thereafter, Jenny arrived at PSA 8 to request information, and was arrested inside of PSA 8.
38. Because there are only two holding cells in PSA 8, Jenny was handcuffed to the outside of the cell in which Mr. Desane was detained.
39. After Mr. Desane was arrested, Defendants searched the apartment and did not find any drugs weapons or contraband in Mr. Desane's possession, custody or control.
40. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from Mr. Desane, or from his custody, possession or control.

41. All drugs and/or drug paraphernalia recovered from the apartment were recovered from Denise and Kevin's room.

42. The officers did not have a warrant or consent to search the apartment, nor were there exigent circumstances or other lawful warrant exceptions that authorized the search.

43. At no time did Mr. Desane commit any crime or violate the law in any way.

44. While still at PSA 8, WILLIAMS and the other defendants fabricated their account of why they arrested Mr. Desane in official police paperwork, falsely stating that he had committed numerous crimes.

45. WILLIAMS drafted a Criminal Court Complaint that falsely accused Mr. Desane of violating Penal Law Sections 221.05 (Unlawful possession of Marijuana); 220.03 (Criminal Possession of a Controlled Substance in the 7th Degree); 220.50 (Criminally Using Drug Paraphernalia in the 2nd Degree).

46. In the same Criminal Court Complaint, Defendants accused Jenny, Kevin, and Denise of violating P.L. Sections 221.05 (Unlawful possession of Marijuana); 220.03 (Criminal Possession of a Controlled Substance in the 7th Degree); 220.50 (Criminally Using Drug Paraphernalia in the 2nd Degree).

47. WILLIAMS and the other defendants sent the paperwork that falsely accused Mr. Desane of violating Penal Law Sections 221.05, 220.03 and 221.05 to the Bronx County District Attorney's Office, despite knowing it contained facts and evidence that was untrue, and which would likely influence the factfinder's determination of Mr. Desane's guilt or innocence.

48. The criminal prosecution was initiated by defendants against Mr. Desane without probable cause, and based upon the false communications to the District Attorney's Office, for alleged violations of Penal Law Sections 221.05, 220.03 and 221.05.

49. Kevin, upon information and belief, pled guilty to one or more Penal Law violations in full satisfaction of charges for which he was arrested on September 4, 2017: 221.05, 220.03 and 221.05.

50. Denise, upon information and belief, pled guilty to one or more Penal Law violations in full satisfaction of charges for which she was arrested on September 4, 2017: 221.05, 220.03 and 221.05.

51. Jenny's prosecution for alleged violations of Penal Law Sections 221.05, 220.03 and 221.05 was dismissed and sealed.

52. The allegations contained in the Criminal Court Complaint were insufficient as a matter of law to initiate, continue or sustain the prosecution of Mr. Desane for alleged violations of Penal Law Sections 221.05, 220.03 and 221.05.

53. Nevertheless, as of the date this Complaint is being filed, Mr. Desane's prosecution for alleged violations of Penal Law Sections 221.05, 220.03 and 221.05 from his September 4, 2017 arrest is still ongoing.

B. September 5, 2017 Excessive Force Incident at PSA 8

54. When Mr. Desane was brought to PSA 8 and placed in a cell on September 4, 2017, HEINZ was on duty at PSA 8.

55. The cell in which Mr. Desane was detained was directly adjacent to the cell in which Kevin was detained.

56. Jenny was not detained in a cell, but instead was detained outside of the cell in which Mr. Desane was detained, and was handcuffed to the bars of his cell.

57. On September 5, 2017, at approximately 3:30 p.m., JOHN DOE PHONE CALL permitted Mr. Desane to exit his cell to make a telephone call.

58. Mr. Desane used a landline telephone in the same room as the holding cells to call his mother.

59. Mr. Desane called his mother and requested that she send an attorney to PSA 8.

60. As Mr. Desane was speaking with his mother, after he asked her to send an attorney, HEINZ abruptly and without warning hung up the telephone.

61. HEINZ then aggressively ordered Mr. Desane to enter the cell in which Kevin was being detained.

62. Mr. Desane requested to return to the cell adjacent to Kevin's cell, since they had been fighting all night about the arrest.

63. HEINZ then stated, "you don't make the rules around here," and suddenly swept Mr. Desane's feet, grabbed his head and slammed him face first into the metal bars of the holding cell.

64. HEINZ then repeatedly bashed Mr. Desane's head into the metal bars of the holding cell, causing Mr. Desane to fall to the floor.

65. After Mr. Desane fell to the floor, HEINZ struck him in the head with his knee.

66. As a result of HEINZ slamming his head into the cell bars and striking him in the head with his knee, Mr. Desane suffered serious, permanent injuries and lost consciousness.

67. Numerous other officers, including JOHN DOE PHONE CALL, and several female officers, including SZOT, were present in the vicinity of the holding cell area and had the time and opportunity to intervene to prevent HEINZ's unlawful use of force against Mr. Desane, but chose not to.

68. Upon information and belief, HEINZ is taller than Mr. Desane and weighed at least 50-60 pounds more than Mr. Desane on the date of the incident.

69. Thereafter, EMTs arrived at PSA 8 and transported Mr. Desane to Montefiore Medical Center Emergency Department at Jack D. Weiler Hospital, 1825 Eastchester Road, Bronx, New York.

70. At the hospital, Mr. Desane underwent a CT Scan, had to have an emergency procedure performed to the wound above his right eye, and received approximately 15 stitches to close the laceration above his right eye.

71. Thereafter, Mr. Desane was transported back to PSA 8, where he was detained until September 7, 2017.

72. While at the precinct, HEINZ manufactured false evidence against Mr. Desane by creating a fabricated account of his interaction with Mr. Desane, which he relayed to WILLIAMS.

73. WILLIAMS then drafted and signed a false Criminal Court Complaint containing HEINZ fabricated account of the interaction that Mr. Desane assaulted him and charging him with felony assault of a police officer in the second degree, P.L. 120.05(3); assault in the third degree, P.L. § 120.00(1); and harassment, P.L. § 240.26(1).

C. Prosecution under 2017BX035144 and 2017BX035148

i. Prosecution under 2017BX035144

74. A criminal prosecution was initiated by defendants against Mr. Desane under Docket No. 2017BX035144 without probable cause, and based upon the false communications to the District Attorney's Office, for alleged violations of Penal Law Sections 221.05, 220.03 and 221.05.

75. WILLIAMS signed a Criminal Court Complaint that contained a fabricated account of the incident that led to Mr. Desane's arrest, which was filed in Bronx County

Criminal Court, which formed the basis for the prosecution of Mr. Desane for alleged violations of Penal Law Sections 221.05, 220.03 and 221.05.

76. The allegations contained in the Criminal Court Complaint were insufficient as a matter of law to initiate, continue or sustain the prosecution of Mr. Desane for alleged violations of Penal Law Sections 221.05, 220.03 and 221.05.

77. Nevertheless, as of the date this Complaint is being filed, Mr. Desane's prosecution for alleged violations of Penal Law Sections 221.05, 220.03 and 221.05 from his September 4, 2017 arrest is still ongoing.

ii. Prosecution under 2017BX035148

78. A criminal prosecution was initiated by defendants against Mr. Desane under Docket No. 2017BX035148 without probable cause, and based upon the false communications to the District Attorney's Office, for alleged violations of P.L. 120.05(3); assault in the third degree, P.L. § 120.00(1); and harassment, P.L. § 240.26(1).

79. WILLIAMS signed the Criminal Court Complaint that contained HEINZ false account of his interaction with Mr. Desane, and falsely charged him with violations of P.L. §§ 120.05(3), 120.00(1), and 240.26(1).

80. Additionally, in the Criminal Court Complaint under docket number 2017BX035148, Defendants added fabricated allegations related to his September 4, 2018 arrest, falsely charging him with Obstructing Governmental Administration, P.L. 195.05.

81. WILLIAMS and the other defendants sent the fabricated Criminal Court Complaint that falsely accused Mr. Desane of violating P.L. §§ P.L. §§ 120.05(3), 120.00(1), 240.26(1), and 195.05 to the Bronx County District Attorney's Office, despite knowing it contained facts and evidence that were untrue, and which would likely influence the factfinder's determination of Mr. Desane's guilt or innocence.

82. Upon information and belief, there were at least two cameras in the holding cell area that video recorded HEINZ brutally beating Mr. Desane.

83. Upon information and belief, the video recordings contradict HEINZ's fabricated account, as documented by WILLIAMS in the Criminal Court Complaint, under Docket No. 2017BX035148.

84. Nevertheless, as of the date of the filing of this complaint, Mr. Desane's prosecution under Docket No. 2017BX035148 is still ongoing.

iii. Arraignment

85. On September 7, 2017, Mr. Desane was transported to Bronx Criminal Court and arraigned under two docket numbers: 2017BX035144 and 2017BX035148.

86. At arraignment, Mr. Desane's criminal defense attorney took several pictures that depicted the physical injuries Mr. Desane suffered as a result of being brutally beaten by HEINZ on September 5, 2017, including:





87. At arraignment, under docket number 2017BX035144, Mr. Desane was charged with Unlawful possession of Marijuana, P.L. 221.05; Criminal Possession of a Controlled Substance in the 7th Degree, P.L. § 220.03; harassment, P.L. § 240.26(1), and Criminally Using Drug Paraphernalia in the 2nd Degree, P.L. 220.05.

88. At arraignment, under docket number 2017BX035148, Mr. Desane was charged with felony assault of a police officer in the second degree, P.L. 120.05(3); assault in the third degree, P.L. § 120.00(1); harassment, P.L. § 240.26(1), and Obstructing Governmental Administration in the Second Degree, P.L. 195.05.

89. Mr. Desane was released on his own recognizance at arraignment after approximately 72 hours in police custody.

D. Additional facts

90. After Mr. Desane was released from custody, he was forced to seek additional medical treatment for his injuries.

91. Upon information and belief, there were at least two cameras in the holding cell area that video recorded HEINZ brutally beating Mr. Desane.

92. On September 14, 2017 and October 13, 2017, Plaintiff served letters demanding that any video recordings of the September 5, 2017 incident that led to Mr. Desane being falsely charged with assaulting HEINZ be preserved.

93. Nevertheless, Defendants have failed to produce copies of the video recordings to Plaintiff's criminal defense attorney.

94. After Mr. Desane was released from custody, HEINZ and the other defendants have taken numerous retaliatory actions against Mr. Desane.

95. For example, on November 1, 2017, Defendants unlawfully entered and searched Mr. Desane's apartment by breaking the front door and lock.

96. As a result, Mr. Desane was forced to replace the front door and/or lock.

97. Defendants did not have a warrant, consent, exigent circumstances, or any lawful reason permitting them to enter and search Mr. Desane's apartment on November 1, 2017.

98. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation: the falsification of evidence by police officers to justify the arrest and prosecution of innocent individuals, their use

of excessive force, and the City's failure to discipline officers who fabricate evidence, destroy evidence, and use excessive force.

99. The defendant CITY is aware (from lawsuits, notices of claim, complaints filed with the NYPD's Internal Affairs Bureau, the City's Civilian Complaint Review Board, and media coverage) that many NYPD officers, including the defendants, are not disciplined following incidents where the NYPD is aware they have fabricated evidence, gave perjured testimony, and/or used excessive force.

100. Defendant City is further aware that such improper failure to discipline has often resulted in a deprivation of civil rights. Despite such notice, defendant City has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiff's civil rights.

101. Defendant City was further aware (from lawsuits, notices of claim, complaints filed with the NYPD's Internal Affairs Bureau, the CITY's Civilian Complaint Review Board, and media coverage) that at the time of the incident at issue herein, PSA 8, and the 43rd and 45th Precinct's oversight, supervision and disciplinary procedures were constitutionally deficient.

102. Defendant CITY is further aware that such constitutionally deficient supervision and oversight has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiff's civil rights.

103. For example, the City is aware that WILLIAMS has a long history of prior similar misconduct.

104. WILLIAMS has been named as a defendant in at least three lawsuits since 2014, including: (1) BROCKETT, KEITH VS CITY OF NEW YORK, ET AL., Sup Ct., Bx, Co., Index No.: 020337/2015E; (2) JONES, DAVID VS CITY OF NEW YORK, ET AL., Sup Ct., Bx, Co., Index No.: 305737/2014; and (3) STEWART, GREGORY VS CITY OF NEW YORK, ET AL., Sup Ct., Bx, Co., Index No.: 025616/2017E.

105. Upon information and belief, WILLIAMS was not disciplined following any of the incidents underlying the lawsuits listed in the prior paragraph.

106. SZOT also has a long history of prior similar misconduct, and was named as a defendant in the following lawsuits: (1) HOYTE v. SZOT et al., SDNY, Index No. 12-cv-6422; and (2) PRINCE v. CITY OF NEW YORK, et al., SDNY, Index No. 13-cv-07645.

107. The failure of the City and NYPD to discipline WILLIAMS and SZOT following these incidents was not isolated, but instead part of a continuing custom and practice of the defendant City and NYPD of failing to discipline officers who use excessive force and lie in their paperwork to cover up their unconstitutional actions.

108. The failure of the City and NYPD to discipline WILLIAMS and SZOT following these incidents was a direct and proximate cause of plaintiffs' injuries and constitutional deprivations as described herein.

109. Moreover, defendant City was aware prior to the incident that the individual defendants had repeatedly fabricated evidence and used excessive force, but had failed to discipline or otherwise take any corrective actions against the defendant NYPD officers.

110. Moreover, defendant City was aware prior to the incident that the supervisory defendants had repeatedly approved and directly participated in the fabrication of evidence by defendant NYPD officers and other officers, and used excessive force, but had failed to discipline or otherwise take any corrective actions against the supervisory defendants.

111. Moreover, defendant City was aware prior to the incident that defendant NYPD officers and supervisory defendants lacked the objectivity, temperament, maturity, discretion and disposition to be employed as police officers. Despite such notice, defendant City retained these officers and failed to adequately train and supervise them.

112. Upon information and belief, none of the defendant NYPD officers have been disciplined as a result of their unlawful arrest, use of excessive force, fabrication of evidence, destruction and spoliation of evidence, and malicious prosecution of plaintiff.

113. During all the foregoing wrongful acts committed against plaintiff, not one of the defendant NYPD officers or supervisory defendants intervened on plaintiff's behalf to prevent the violation of their constitutional rights, despite having realistic opportunities to do so.

114. Because of the foregoing, plaintiff sustained, *inter alia*, physical pain, permanent physical injuries, mental injuries, emotional distress, embarrassment, humiliation, lost income, loss of liberty, and deprivation of his common law and constitutional rights.

115. Because of the foregoing, plaintiff demands judgment against defendants in an amount of money to be determined at trial.

PLAINTIFF'S INJURIES AND DAMAGES

116. As a direct and proximate consequence of the aforementioned actions by the defendants, plaintiff:

- a. Was detained for approximately 72 hours;
- b. Suffered severe and permanent physical injuries and physical sickness;
- c. Was subjected to degrading, dehumanizing and emotionally destructive conditions;
- d. Suffered and continues to suffer mental and emotional distress and harm;
- e. Suffered lost income;
- f. Suffered lost job opportunities;
- g. Suffered loss of property;
- h. Was publicly shamed, disgraced, ridiculed and humiliated and suffered damage to reputation; and
- i. Incurred other items of attendant damages.

**FIRST CLAIM FOR RELIEF
DEPRIVATION RIGHTS UNDER 42 U.S.C. §§ 1981 and 1983**

117. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

118. All of the aforementioned acts of the Defendant City and the Defendant POLICE OFFICERS and their agents, servants and employees ("Defendants"), were carried out under the color of state law.

119. All of the foregoing acts by Defendants deprived plaintiff of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from seizure and arrest not based upon probable cause;
- c. To freedom from being subjected to false criminal charges by the police;
- d. To freedom from fabrication of evidence;
- e. To freedom from destruction of evidence;
- f. To freedom from excessive force;
- g. To freedom from retaliatory prosecution;
- h. To freedom from abuse of process; and
- i. To freedom of speech and expression.

120. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

121. The acts complained of were carried out by the aforementioned individual NYPD defendants in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.

122. The acts complained of were carried out by the aforementioned individual NYPD defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendant CITY and the RPD, all under the supervision of ranking officers of said department.

123. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damage to his reputation and standing within his community.

124. Defendant THE CITY and the NYPD are responsible for the actions of their employees under the doctrine of *Monell v. City of New York Department of Social Services*, 436 U.S. 658 (1978).

125. As a result of Defendants' impermissible conduct, plaintiff was injured and harmed.

126. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SECOND CLAIM FOR RELIEF
False Arrest / Unlawful Imprisonment under 42 U.S.C. § 1983
(Against WILLIAMS, SZOT, AVILES)

127. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

128. One or more of the defendant police officers, including but not limited to defendants SZOT, WILLIAMS and AVALIES handcuffed and arrested Plaintiff.

129. The arrest was made in the absence of a warrant for the arrest.

130. The arrest was made in the absence of probable cause for the arrest.

131. The defendant police officers arrested plaintiff without having exigent circumstances for doing so.

132. There was no other authority for the arrest of plaintiff.

133. Plaintiff was conscious of the arrest.

134. Plaintiff did not consent to the arrest.

135. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THIRD CLAIM FOR RELIEF
FALSE ARREST UNDER NEW YORK STATE LAW
(Against WILLIAMS, SZOT, AVILES)

136. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

137. As a result of the aforesaid conduct by the Defendant CITY and the Defendant POLICE OFFICERS, Plaintiff was unlawfully detained and confined.

138. The Defendant POLICE OFFICERS—in performance of their duties with powers and authorities designated upon them by the Defendant CITY—intentionally confined Plaintiff.

139. Plaintiff was at all times consciously aware of his confinement by the Defendant POLICE OFFICERS.

140. At no point throughout Plaintiff's unlawful detention and confinement by the Defendant POLICE OFFICERS did Plaintiff consent to said confinement.

141. At no point throughout Plaintiff's unlawful detention and confinement by the Defendant POLICE OFFICERS were the actions of the Defendant POLICE OFFICERS otherwise privileged.

142. Defendant City is also liable to Plaintiff on the basis of *respondeat superior* as a result of the unlawful actions of the defendant police officers as described herein.

143. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.

144. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FOURTH CLAIM FOR RELIEF
FABRICATION OF EVIDENCE UNDER 42 U.S.C. § 1983

(Against WILLIAMS, HEINZ, SZOT, AVILES)

145. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

146. By deliberately manufacturing false evidence against plaintiff, including police reports containing the defendant NYPD officers' own fabricated and falsified accounts that Mr. Desane had committed crimes and/or offenses, and forwarding that fabricated evidence to prosecutors, the defendant NYPD officers caused Plaintiff Mr. Desane to be arrested, detained, and in violation of Plaintiff's rights, pursuant to the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, to due process of law and to a fair trial, and are liable to Plaintiff under 42 U.S.C. § 1983, for compensatory and punitive damages.

147. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.

148. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FIFTH CLAIM FOR RELIEF
FAILURE TO INTERVENE under 42 U.S.C. § 1983
(Against WILLIAMS, JOHN DOE PHONE CALL, SZOT, AVILES)

149. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

150. The defendant police officers all had an affirmative duty to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights by the other defendant police officers.

151. The defendant police officers failed to intervene on Plaintiff's behalf despite having had realistic opportunities to do so.

152. The defendant police officers failed to intervene on Plaintiff's behalf despite having substantially contributed to the circumstances within which plaintiff's rights were violated by their affirmative conduct.

153. As a result of the aforementioned conduct of the defendant police officers, Plaintiff's constitutional rights were violated.

154. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.

155. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SIXTH CLAIM FOR RELIEF
NEGLIGENCE UNDER NEW YORK STATE LAW
(AGAINST THE CITY)

156. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

157. Defendant City was negligent in the hiring and retention of the defendant police officers as follows:

- A. Upon information and belief, Defendant City failed to use reasonable care in the hiring and retention of the Defendant Police Officers who conducted and participated in the acts of subjecting Plaintiff to an unlawful stop, unlawful seizure, unlawful search, false arrest, false imprisonment, denial of a fair trial, and who fabricated evidence against him and violated his constitutional rights in the manners described herein.
- B. Defendant City knew, or should have known in the exercise of reasonable care, the propensities of the aforesaid Defendant Police Officers to engage in the wrongful conduct heretofore alleged in this complaint.

158. Defendant the City was negligent in the training and supervision of the Defendant Police Officers as follows:

- A. Defendant City knew or should have known that the requirements, guidelines, and terms of its training for the defendant police officers were insufficient and inadequate regarding truthfully filling out paperwork, making arrest for the purpose of obtaining overtime pay, and to prevent the Defendant Police Officers from engaging in the wrongful conduct heretofore alleged in this complaint.
- B. Defendant City knew or should have known that the requirements, guidelines, and terms of its training for the defendant police officers were insufficient and inadequate regarding truthfully filling out and completing required police paperwork to document arrests and other interactions with citizens, and to prevent the defendant police officers from engaging in the wrongful conduct heretofore alleged in this complaint.

- C. Defendant City knew or should have known that the requirements, guidelines, and terms of its training for the defendant police officers were insufficient and inadequate regarding investigating domestic violence incidents, and particularly interacting with witnesses to incidents of domestic violence.
- D. Defendant City knew or should have known that the requirements, guidelines, and terms of its training for the defendant police officers were insufficient and inadequate regarding the constitutional requirements for searching apartments where alleged domestic violence incidents occurred, lawfully completing search warrant applications and executing search warrants.
- E. Defendant City knew or should have known that the requirements, guidelines, and terms of its training for the defendant police officers were insufficient and inadequate regarding the constitutional requirements relating to persons exercising their First Amendment right to record police performing their official duties.

159. Defendant City is also liable to Plaintiff on the basis of *respondeat superior* as a result of the unlawful actions of the defendant police officers as described herein.

160. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SEVENTH CLAIM FOR RELIEF
SUPERVISORY LIABILITY under 42 U.S.C. § 1983
(Against SZOT)

161. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

162. The supervisory defendants personally caused plaintiff's constitutional injuries by being deliberately or consciously indifferent to the rights of others in failing to properly supervise, train, and discipline their subordinate employees.

163. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

EIGHTH CLAIM FOR RELIEF
ASSAULT UNDER NEW YORK STATE LAW

(Against AVILES and HEINZ)

164. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

165. AVILES rushed upon plaintiff, grabbed his body and hands, and placed handcuffs on his wrists in an excessively tight manner, despite not having reasonable or probable cause for his arrest.

166. The handcuffs were too tight, and were left on for unreasonable periods of time.

167. HEINZ rushed upon plaintiff, grabbed his body and head, repeatedly slammed his head into the metal holding cell bars, and struck him in the head with his knee.

168. By the aforescribed conduct, the individual NYPD defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, and that such acts caused apprehension of such contact in the Plaintiff.

169. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the Defendant CITY and the NYPD, which are therefore responsible for their conduct.

170. The Defendant CITY, as the employer of individual NYPD defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

171. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

NINTH CLAIM FOR RELIEF
BATTERY UNDER NEW YORK STATE LAW
(Against AVILES and HEINZ)

172. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

173. AVILES rushed upon plaintiff, grabbed his body and hands, and placed handcuffs on his wrists in an excessively tight manner, despite not having reasonable or probable cause for his arrest.

174. The handcuffs were too tight, and were left on for unreasonable periods of time.

175. HEINZ rushed upon plaintiff, grabbed his body and head, repeatedly slammed his head into the metal holding cell bars, and struck him in the head with his knee.

176. By the aforescribed conduct, AVILES and HEINZ, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner struck Plaintiff and handcuffed him without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

177. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the Defendant CITY and the NYPD, which are therefore responsible for their conduct.

178. The Defendant CITY, as the employer of individual NYPD defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

179. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

TENTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983
(Against AVILES and HEINZ)

180. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

181. AVILES roughly seized and handcuffed plaintiff without probable cause for his arrest.

182. AVILES grabbed plaintiff, roughly slammed him against the wall, and handcuffed him in an unreasonably tight manner without probable cause for his arrest.

183. HEINZ rushed upon plaintiff, grabbed his body and head, repeatedly slammed his head into the metal holding cell bars, and struck him in the head with his knee.

184. The level of force employed by AVILES and HEINZ against plaintiff was objectively unreasonable.

185. The force employed by AVILES and HEINZ against plaintiff did not advance any proper governmental objective.

186. As a result of the aforementioned conduct, plaintiff suffered and sustained physical injuries.

187. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

ELEVENTH CLAIM FOR RELIEF
MALICIOUS ABUSE OF PROCESS under 42 U.S.C. § 1983
(Against all defendants)

216. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

217. Defendants issued criminal process against plaintiff by causing his arrest and prosecution in Bronx Criminal Court.

218. Defendants caused plaintiff to be arrested and prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to avoid discipline for their abuse of authority and acts of brutality; as retribution for Kevin's assault of Denise, and other perceived wrongs; as retribution for his request for his mother to send an attorney to the precinct; and thereby violated plaintiff right to be free from malicious abuse of process.

219. Accordingly, Mr. Desane demands judgment against defendants in a sum of money to be determined at trial.

188. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

TWELFTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983
ARISING FROM UNCONSTITUTIONAL MUNICIPAL POLICES RELATING TO THE
CITY'S CUSTOM, PRACTICE, AND POLICY OF FAILING TO DISCIPLINE POLICE
OFFICERS WHO MANUFACTURE FALSE EVIDENCE
(Against City)

189. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

190. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

191. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, police officers fabricating their account of their interactions with arrestees in official police paperwork and sworn court testimony in an attempt to justify their violation of said arrestees' constitutional rights.

192. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

193. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

194. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD, plaintiff was unlawfully arrested and detained.

195. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

196. All of the foregoing acts by defendants deprived plaintiff of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To a fair trial;
- C. To be free from false evidence being created by the police to charge crimes;
- D. To be free from excessive use of force

197. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in below:

- A. *Dufort v City of New York*, 874 F.3d 338 (2d Cir 2017);
- B. *Garnett v. Undercover Officer C0039*, 838 F.3d 265, 275 (2d Cir. 2016);
- C. *Corey Avent v. City of New York*, United States District Court, Eastern District of New York, 04 CV 2451;

- D. *Reginald McMillan v. City of New York*, United States District Court, Eastern District of New York, 04 CV 3990;
- E. *Michael A. Smith v. City of New York*, United States District Court, Eastern District of New York, 04 CV 1045;
- F. *William Springer v. City of New York*, United States District Court, Southern District of New York, 05 Civ. 6845;
- G. *Chasity Rivera v. City of New York*, United States District Court, Southern District of New York, 05 Civ. 6769;
- H. *Rafael Santana v. City of New York*, United States District Court, Eastern District of New York, 06 Civ. 2411;
- I. *Lakus Brown v. City of New York*, United States District Court, Southern District of New York 07 Civ. 11186;
- J. *Davidson Beltran v. City of New York*, United States District Court, Southern District of New York (05 Civ. 6847);
- K. *Cordero v. City of New York*, 15-cv-3436 (JBW)(CLP) (Dec. 13, 2017);
- L. Kendall Taggart and Mike Hayes, *Secret NYPD Files: Officers Can Lie And Brutally Beat People—And Still Keep Their Jobs*, BuzzFeedNews (March 5, 2018), available at: https://www.buzzfeed.com/kendalltaggart/secret-nypd-files-hundreds-of-officers-committed-serious?utm_term=.qgeB84Kbm#.spNw05P8E¹;
- M. Joseph Goldstein, 'Testilying' by Police: A Stubborn Problem, N.Y. Times (March 18, 2018), available at: <https://www.nytimes.com/2018/03/18/nyregion/testilying-police-perjury-new-york.html>.²;
- N. Joseph Goldstein, *Police 'Testilying' Remains a Problem. Here Is How the Criminal Justice System Could Reduce It.*, N.Y. Times (March 22, 2018),

¹ Article incorporated by referenced herein, including all of its factual allegations and all of the allegations and findings in every case and internal investigation upon which it is based are incorporated in full as if fully set forth and pleaded herein.

² Article incorporated by referenced herein, including all of its factual allegations and all of the allegations and findings in every case and internal investigation upon which it is based are incorporated in full as if fully set forth and pleaded herein.

available at: <https://www.nytimes.com/2018/03/22/nyregion/police-lying-new-york.html>³;

- O. Jim Dwyer, *Misidentified and Tackled by the New York Police, but No Tennis Star Treatment*, N.Y. Times (Sept. 15, 2015), available at: https://www.nytimes.com/2015/09/16/nyregion/misidentified-and-tackled-by-the-police-but-no-tennis-star-treatment.html?_r=0.⁴
- P. Joseph Goldstein and John Surico, *New York Detective Guilty of Lying About Drug Arrest*, N.Y. Times (Jan. 24, 2018), available at: <https://www.nytimes.com/2018/01/24/nyregion/new-york-detective-desormeau-perjury.html>.⁵
- Q. Joseph Goldstein, *He Excelled as a Detective, Until Prosecutors Stopped Believing Him*, N.Y. Times (Oct. 10, 2017), available at: <https://www.nytimes.com/2017/10/10/nyregion/he-excelled-as-a-detective-until-prosecutors-stopped-believing-him.html>.⁶
- R. Rick Rojas, *More Allegations Emerge Against Detectives Accused of Lying*, N.Y. Times (Mar. 7, 2017), available at: <https://www.nytimes.com/2017/03/07/nyregion/nypd-detective-kevin-desormeau-sasha-cordoba.html>.⁷
- S. Rick Rojas, *Two N.Y.P.D. Officers Are Charged With Lying About a Suspect*, N.Y. Times (Feb. 6, 2017), available at:

³ Article incorporated by referenced herein, including all of its factual allegations and all of the allegations and findings in every case and internal investigation upon which it is based are incorporated in full as if fully set forth and pleaded herein.

⁴ Article incorporated by referenced herein; moreover, any and all of the factual allegations and all of the allegations and findings in every case and internal NYPD investigation upon which the article is based are incorporated in full as if fully set forth and pleaded herein.

⁵ Article incorporated by referenced herein; moreover, any and all of the factual allegations and all of the allegations and findings in every case and internal NYPD investigation upon which the article is based are incorporated in full as if fully set forth and pleaded herein.

⁶ Article incorporated by referenced herein; moreover, any and all of the factual allegations and all of the allegations and findings in every case and internal NYPD investigation upon which the article is based are incorporated in full as if fully set forth and pleaded herein.

⁷ Article incorporated by referenced herein; moreover, any and all of the factual allegations and all of the allegations and findings in every case and internal NYPD investigation upon which the article is based are incorporated in full as if fully set forth and pleaded herein.

<https://www.nytimes.com/2017/02/16/nyregion/nypd-sasha-cordoba-kevin-desormeau.html>.⁸

T. J. David Goodman, *Review Board Notes Rise in New York Police Officers' False Statements*, N.Y. Times (May 14, 2015), available at: <https://www.nytimes.com/2015/05/15/nyregion/civilian-board-notes-rise-in-false-statements-by-new-york-officers-in-2014.html?action=click&contentCollection=N.Y.%20%2F%20Region&module=RelatedCoverage®ion=Marginalia&pgtype=article>.⁹

198. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THIRTEENTH CLAIM FOR RELIEF
RETALIATION FOR FIRST AMENDMENT PROTECTED EXPRESSION
UNDER 42 U.S.C. § 1983
(Against all defendants)

199. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

200. Plaintiff was lawfully present inside of his apartment and informed WILLIAMS, SZOT, AVILES, and John Does that he was going to record them when they entered his apartment at the time of the September 4, 2017 incident.

201. The Defendant POLICE OFFICERS, including but not limited to WILLIAMS, SZOT, AVILES, and John Does stopped and arrested Plaintiff in order to retaliate against him for being present as an observer and/or documenting a their search of his apartment with his cell phone.

202. AVILES and/or other defendant police officers punched forcefully grabbed and seized Mr. Desane, threw him against the wall, and handcuffed him in an unreasonably tight manner without probable cause for his arrest, in the absence of need for such action and force, in

⁸ Article incorporated by referenced herein; moreover, any and all of the factual allegations and all of the allegations and findings in every case and internal NYPD investigation upon which the article is based are incorporated in full as if fully set forth and pleaded herein.

⁹ Article incorporated by referenced herein; moreover, any and all of the factual allegations and all of the allegations and findings in every case and internal NYPD investigation upon which the article is based are incorporated in full as if fully set forth and pleaded herein.

order to retaliate against him for being present as an observer and/or stating that he was going to record their search of his apartment with his cell phone.

203. The Defendant POLICE OFFICERS, including but not limited to WILLIAMS, SZOT, AVILES, and John Does stopped, arrested and used force against Plaintiff in order to retaliate against him and to chill and deter him from further First Amendment protected activity.

204. Plaintiff was not engaged in any illegal activity of any kind or sort when the Defendant POLICE OFFICERS stopped and arrested him on September 4, 2018.

205. HEINZ used force against Plaintiff and manufactured false evidence against him in retaliation for him exercising his First, Fifth, Sixth and Fourteenth Amendment right to request that his mother send an attorney to PSA 8.

206. HEINZ used force against Plaintiff and manufactured false evidence against him in retaliation for him exercising his First Fourteenth Amendment right to protest HEINZ attempt to place him in physical harm by attempting to put him in a holding cell with Kevin Vasquez.

207. Plaintiff was not engaged in any illegal activity of any kind or sort when the HEINZ seized, assaulted, battered and used excessive force against him on September 5, 2018.

208. The Defendant POLICE OFFICERS stopped, seized, arrested and used force against Plaintiff in order to retaliate against him for lawfully exercising his First Amendment protected right to record the police performing their duties in a public place; and his constitutional rights to speak with an attorney and to protest unlawful and/or retaliatory police actions.

209. The actions of the defendant police officers heretofore described were designed to and did cause severe physical harm and psychological and emotional distress in direct retaliation for Plaintiff's exercise of his civil and constitutional rights of free speech, free expression and to record the police performing their public duties in a public place as guaranteed by First, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.

210. As a result of Defendants' impermissible conduct, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

211. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FOURTEENTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983
ARISING FROM UNCONSTITUTIONAL MUNICIPAL POLICES RELATING TO THE
NYPD's CUSTOM, PRACTICE, AND POLICY OF MAKING RETALIATORY
ARRESTS AGAINST PERSONS WHO LAWFULLY PHOTOGRAPH, DOCUMENT OR
RECORD POLICE ACTIVITY
(Against City)

212. Plaintiff re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

213. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

214. The acts complained of were carried out by the individual defendants in their capacities as police officials pursuant to customs, policies, usages, practices, procedures and rules of the CITY and the NYPD, all under the supervision of ranking officers of the NYPD.

215. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to making retaliatory arrests against persons who lawfully photograph, document or record police activity, and/or persons who lawfully attempt to engage in such activity.

216. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in below:

Journalists and Photographers

**a. May 30, 2007 / Robert Carneval / Carneval v. City of New York, 08 CV 9993
(DAB)(AJP) (S.D.N.Y.)**

A Manhattan photographer, Robert Carneval, was arrested after filming NYPD officers in the East Village as they seized and loaded bikes, which had been locked to lampposts and parking meters, into a police van. After the photographer began filming and discussing the removals with another man, a plainclothes officer asked him for identification. When the photographer stated he had the right to film, the officer led him to a police car, examined his ID, then arrested him. Colin Moynihan, *City Settles with Two Arrested After Police Confrontation*, The New York Times (March 31, 2010), <http://cityroom.blogs.nytimes.com/2010/03/31/city-settles-with-pair-arrested-after-police-confrontation/>.

b. November 2011 / Karen Matthews, Seth Wenig, Matthew Lysiak, Patrick Hedlund, Paul Lomax and Julie Walker

In November of 2011, at least six journalists were arrested while covering the raid and eviction of Occupy Wall Street protesters from Zuccotti Park. Thirteen news organizations in New York City lodged complaints about the treatment of journalists and the suppression of coverage of the event, and ten press clubs, unions, and other groups called for an investigation into the police conduct at issue. CBS New York / AP, *Several Journalists Among Those Arrested During Zuccotti Park Raid*, CBS New York (November 15, 2011)

<http://newyork.cbslocal.com/2011/11/15/officials-journalists-among-those-arrested-during-zuccotti-park-raid/>; Brian Stelter, *News Organizations Complain About Treatment During Protests*, The New York Times: Media Decoder (November 21, 2011) <http://mediadecoder.blogs.nytimes.com/2011/11/21/news-organizations-complain-about-treatment-during-protests/>.

c. November 15, 2011 / Timothy Fitzgerald / Rodriguez v. Winski, 12 CV 3389 (NRB) (S.D.N.Y.)

On or about November 15, 2011, in Zucotti Park, a publicly accessible open space, several police officers grabbed Timothy Fitzgerald, a citizen reporter who was documenting protest activities and police response to same, pulled him to the ground and arrested him.

d. August 4, 2012 / Robert Stolarik

Photographer Robert Stolarik, who worked regularly for The New York Times for more than a decade, was charged with obstructing government administration and resisting arrest after taking photographs of a brewing street fight at McClellan Street and Sheridan Avenue in the Bronx. Mr. Stolarik was taking photographs of the arrest of a teenage girl about 10:30 p.m., when a police officer instructed him to stop doing so. Mr. Stolarik said he identified himself as a journalist for The New York Times and continued taking pictures. A second officer appeared, grabbed his camera and “slammed” it into his face, he said. The arresting officer was later indicted for falsifying statements surrounding Mrs. Stolarik’s arrest. Russ Buettner, *Officer Is Indicted on Charges of Lying About Photographer’s Arrest*, The New York Times (Aug. 26, 2013),

<http://www.nytimes.com/2013/08/27/nyregion/officer-is-indicted-on-charges-of-lying-about-photographers-arrest.html>.

e. September 17, 2012 / Christopher Faraone / Faraone v. City of New York et al, 13 CV 09074 (TPG) (S.D.N.Y.)

Christopher Faraone, a journalist, was photographing a public demonstration at One Chase Manhattan Plaza when NYPD officers tackled, battered and arrested him. One of the officers directed him to cease his reporting activities within New York City.

f. September 15-17, 2012 / Julia Reinhart, Charles Meacham, and John Knefel

Five photojournalists reporting on Occupy Wall Street protesters were arrested in course of their reporting. One photographer was arrested after attempting to take a picture of an officer giving a dispersal order on a sidewalk. Another was forced to the ground and detained, while another was shoved and blocked from taking a photo by a Lieutenant in the NYPD's Legal Bureau. Christopher Robbins, *NYPD's pattern of harassing, arresting journalists continues*, Gothamist (Sept. 19, 2012)

http://gothamist.com/2012/09/19/nypds_harassment_of_journalists_con.php.

g. December 12, 2011 & March 15, 2012 / Paul Sullivan, John Knefel and Justin Wedes / Rodriguez v. Winski, 12 CV 3389 (NRB) (S.D.N.Y.)

On December 12, 2011, Paul Sullivan, John Knefel and Justin Wedes, citizen reporters who were documenting protest activities and police response to same at the Winter Garden, a publicly accessible open place, were grabbed, pulled to the ground and arrested without warning or probable cause by the NYPD. On March 15, 2012, Mr. Wedes was again threatened with arrest for the same legal activity.

h. March 2012 / Unknown

In March of 2012, a cameraman from WABC-TV was struck by an officer at crime scene for unknown reasons. Carlos Miller, *NYPD Cop Assaults News Videographer At Crime Scene*, Photography Is Not A Crime (March 22, 2012)

<http://photographyisnotacrime.com/2012/03/22/nypd-cop-assaults-news-videographer-at-crime-scene/>

i. November 27, 2012 / Angel Zayas / Zayas v. Kelly, 13 CV 08808 (JMF) (S.D.N.Y.)

On November 27, 2012, a freelance photographer, Angel Zayas, was arrested for photographing officers effect an unrelated arrest in Grand Central Terminal. Daniel

Beekman, *Photographer trying to shoot stop and frisk sues NYC over police harassment*, New York Daily News (December 13, 2013) <http://www.nydailynews.com/news/justice-story/photog-shooting-frisking-sues-nyc-harassment-article-1.1546548>

j. January 16, 2013 / Shimon Gifter

A photographer from VIN News, a media outlet for the Orthodox Jewish community, had his camera seized and thrown to the ground, his memory card erased, and his Blackberry damaged after photographing officers stopping and frisking several young men. The photographer was also handcuffed and held up against a wall before being released with a warning.

Boruch Shubert, *Police Brutality in Midwood?*, The Jewish Voice (January 24, 2013) http://jewishvoicenyc.com/index.php?option=com_content&view=article&id=2978:police-brutality-in-midwood&catid=106:international&Itemid=289; Sandy Eller, *Charedi Photographer Claims Handcuffed By NYPD After Videotaping Flatbush Police Stop*, Voz Iz Neias? (January 20, 2013). <http://www.vosizneias.com/122118/2013/01/20/brooklyn-ny-charedi-photographer-claims-handcuffed-by-nypd-after-videotaping-flatbush-police-stop/>.

k. April 19, 2013 / Justin Thomas / Thomas v. City of New York, 13 CV 6139 (SJ) (LB) (E.D.N.Y.)

A film student was arrested filming the exterior of the 72nd Precinct on April 19, 2013. Officers confiscated the student's cell phone, camera, and the camera's memory card, as well as his friend's memory card from a camera. Officers failed to remove the correct memory card from the friend's camera, however, leaving evidence of the encounter.

Concerned Citizens

l. February 9, 2005 / Lumumba Bandele, Djibril Toure and David Floyd / Bandele v. The City of New York, 07 CV 3339 (MGC) (S.D.N.Y.)

Lumumba Bandele, Djibril Toure and David Floyd were arrested while videotaping two arrests in Bedford-Stuyvesant, Brooklyn, on February 9, 2005. "In trying to stop the police from violating the rights of others, they had their rights violated," said Kamau Franklin, a lawyer with the Center for Constitutional Rights. *Metro Briefing: New York; Manhattan: Lawsuit Against The Police*, The New York Times (April 27, 2007),

<http://query.nytimes.com/gst/fullpage.html?res=9C02E2DD123EF934A15757C0A9619C8B63>.

m. September 29, 2009 / Dennis Flores / Mesa v. City of New York, 09 CV 10464 (JPO) (S.D.N.Y.)

On September 29, 2009, Dennis Flores was arrested when he photographed NYPD officers using excessive force to disperse a crowd at a festival in the Bronx. At one point prior to Flores' arrest, an NYPD officer stated it was "illegal to photograph police."

n. October 17, 2010 / Anibal Ortiz / Ortiz v. City of New York, 11 CV 7919 (JMF) (S.D.N.Y.)

On October 17, 2010, Anibal Ortiz was arrested after he began recording NYPD officers, who asked him for identification, with a cell phone camera.

o. July 11, 2011 / Caroline Stern and George Hess / Stern v. City of New York, 12 CV 04863 (SAS) (S.D.N.Y)

On July 11, 2011, Caroline Stern was arrested and her boyfriend George Hess, was tackled and arrested after he began video recording an encounter with officers in a subway station. Kathianne Boniello, *Couple handcuffed, jailed for dancing on subway platform: lawsuit*, The New York Post (July 8, 2012)

<http://nypost.com/2012/07/08/couple-handcuffed-jailed-for-dancing-on-subway-platform-lawsuit/>

p. April 27, 2012 / John Runnells / Runnells v. City of New York, 13 CV 2904 (KBF) (S.D.N.Y.)

On April 27, 2012, John Runnells' camera was seized and its footage erased after he video recorded a police traffic checkpoint. Mr. Runnells continued recording the officers after his camera was returned, and he was subsequently arrested. Once again, his camera was seized and the footage deleted.

q. June 5, 2012 / Hadiyah Charles / Charles v. City Of New York, 12 CV 06180 (SLT) (SMG) (E.D.N.Y)

On June 5, 2012 a woman was pushed and arrested for using her phone to video record the stop-and-frisk of three unrelated young men on a public sidewalk. Rocco Parascandola, *Woman suing NYPD for wrongful arrest discovers that a key piece of evidence has mysteriously vanished from the Brooklyn stationhouse*, New York Daily

News (October 17, 2013) <http://www.nydailynews.com/new-york/brooklyn/brooklyn-precinct-log-book-mystery-article-1.1487721>

r. August 2012 / Unknown

In August of 2012, a man was threatened with arrest for filming outside about 300 feet away from the security checkpoint at One Police Plaza. Carlos Miller, *NYPD Cop Fails at Intimidating Man From Video Recording Police Headquarters*, Photography Is Not A Crime (August 17, 2012) <http://photographyisnotacrime.com/2012/08/17/nypd-cop-fails-at-intimidating-man-from-video-recording-police-headquarters/>

s. January 10, 2012 / Justin Sullivan / Rodriguez v. Winski, 12 CV 3389 (NRB)

On January 10, 2012, Justin Sullivan was arrested for filming an Occupy Wall Street protest at Grand Central Terminal and his camera was confiscated. Later, Mr. Sullivan returned to the police precinct at the terminal to retrieve his camera and he was re-arrested. A witness reported an officer destroyed Mr. Sullivan's camera.

t. March 2012 / Unknown

In March of 2012, an individual video recording officers beating another man with batons was told to leave the scene and threatened with pepper spray.

Carlos Miller, *NYPD Takes Break From Beating Man To Threaten Videographer With Pepper Spray* (March 18, 2012)

<http://photographyisnotacrime.com/2012/03/18/nypd-takes-break-from-beating-man-to-threaten-videographer-with-pepper-spray/>.

u. June 14, 2012 / Dick George / George v. The City of New York, 15 CV 3108 (KAM)(SMG) (E.D.N.Y.)

On June 14, 2012, Dick George was arrested for filming police search several youths on the street in Brooklyn, and telling them to get the officers' badge numbers.

John Marzulli, *Exclusive: \$125G deal over vid of stop-frisk*, N.Y. Daily News (August 18, 2014), <http://www.nydailynews.com/news/national/125g-deal-vid-stop-frisk-article-1.1906965>.

v. September 28, 2012 / Santos Bobet / Bobet v. The City of New York, 14 CV 1396 (WHP)(JLC) (S.D.N.Y)

On September 28, 2012, at approximately 8:55 p.m., Santos Bobet observed someone being arrested near the Whitlock Avenue 6 Station in the Bronx. After beginning to

videotape the arrest, he was arrested by Officer Kelvin Prado, who then along with his partner deleted the video footage.

w. March 13, 2013 / Ed Garcia Conde

Ed Carcia Conde was arrested on March 13, 2013 after he used his phone to video record a police officer's interaction with another man. Ben Yakas, *Video: Bronx Man Hauled To Jail For Exercising Right To Videotape Cops*, Gothamist (March 16, 2013) http://gothamist.com/2013/03/16/video_bronx_man_hauled_to_jail_for.php.

x. May 16, 2013 / Christina Gonzalez and Matthew Swaye

Two Harlem residents were arrested after they filmed NYPD officers conduct stop-and-frisks at a car checkpoint. Christina Gonzalez and Matthew Swaye said they were returning from a Bronx mall at about 10:30 p.m. when they noticed several vehicles stopped and Gonzalez took out her camera to begin filming. Jeff Mays, *'Professional Agitators' on NYPD 'Wanted' Flier Arrested After Filming Stop*, DNA Info (May 21, 2013), <http://www.dnainfo.com/new-york/20130521/central-harlem/professional-agitators-on-nypd-wanted-flier-arrested-after-filming-stop>.

y. August 26, 2013 / Jonathan Harris

NYPD officers arrested a Bronx teenager, Jonathan Harris, after he was filming the officers attack and threaten two young girls in a Bronx park. The teenager told the officers to leave the girls alone and began filming them with his phone. The officers began chasing him, tackled him and punched him before arresting him. Jennifer Cunningham, *Teens say they were beaten by cops in Bronx park*, New York Daily News (Aug. 29, 2013), <http://www.nydailynews.com/new-york/bronx/teens-mauled-cops-article-1.1440394#ixzz2eVh68jgw>.

z. September 19, 2013 / Sean Basinski / Basinski v. The City of New York, 14 CV 1057 (LTS) (S.D.N.Y.)

On September 19, 2013, a lawyer, Sean Basinski was arrested while using a phone to records police during a rally in front of Midtown North Precinct police station on West 54th Street. Colin Moynihan, *Street Vendors Protest Treatment by Police*, The New York Times (October 2, 2013), http://www.nytimes.com/2013/10/03/nyregion/street-vendors-protest-treatment-by-police.html?_r=0.

aa. **June 5, 2013 / Rahul Saksena / Seksena v. The City of New York, 14 CV 5129 (JBW) (LB) (E.D.N.Y.)**

On June 5, 2014, at approximately 10:00 p.m., Mr. Saksena was arrested in retaliation for filming a civilian police interaction in the Bushwick section of Brooklyn.

bb. **September 25, 2013 / Debra Goodman / Goodman v. The City of New York, 14 CV 5261 (CM) (S.D.N.Y.)**

Debra Goodman was arrested by two NYPD officer for using her cellphone to videotape an interaction between the officers and a homeless woman.

cc. **March 12, 2014 / Jason Disisto / Disisto v. The City of New York, 15 CV 3296 (GHW) (S.D.N.Y.)**

Jason Disisto was arrested by two NYPD officers for using his cellphone to videotape the officers performing a search on a public sidewalk. Thereafter, on December 22, 2015, NYPD Officer Johathan Munoz was indicted by the Manhattan District Attorney's Office for falsely arresting Disisto and lying about it.

Nathan Tempey, *NYPD Cop Indicted For Falsely Arresting Man Who Recorded Him*, Gothamist (Dec. 22, 2015),

http://gothamist.com/2015/12/22/cop_watch_season_2_the_reckoning.php.

dd. **March 8, 2015 / David Rivera / Rivera v. The City of New York, 16 CV 3296 (PKC)(RER) (E.D.N.Y.)**

On March 8, 2015, David Rivera was inside of his apartment when he heard a loud commotion in the hallway. When he opened his apartment door and saw numerous NYPD officers violently arresting his neighbor, he began filming the interaction on his cell phone. In response, NYPD Sergeant Diana Pichardo pointed her gun at Rivera, took his cell phone, and falsely arrested and charged him with numerous felonies, each of which was dismissed at arraignment.

John Marzulli, *NYPD sergeant aims gun at man recording her, busts into his home*, N.Y. Daily News (June 5, 2016), <http://www.nydailynews.com/new-york/nypd-accused-arresting-man-recording-video-cops-article-1.2675620>.

ee. **May 20, 2016 / Eric Worell**

On May 20, 2016, NYPD Officer Risel Martinez pointed his gun at 19-year-old Jahnico Harvey, who was filming him violently arrest a man in an apartment building. After the

first arrest, another cell phone video shows Officer Martinez walking up to Harvey, punching him in the face, throwing him on the ground and arresting him.

John Marzulli, *NYPD cop who pulled gun, punched man recording him at Harlem apartment building a 'good' officer, colleagues say*, N.Y. Daily News (May 21, 2016), <http://www.nydailynews.com/new-york/nypd-pulled-gun-punched-harlem-man-good-officer-article-1.2645211>.

ff. June 11, 2016 / Threstan Ralph

On June 11, 2016, Threstan Ralph was arrested for filming five NYPD officers violently arresting a woman on Glenwood Road.

John Marzulli, *NYPD accused of arresting man for recording video of cops*, N.Y. Daily News (June 16, 2016), <http://www.nydailynews.com/new-york/nypd-accused-arresting-man-recording-video-cops-article-1.2675620>.

gg. April 19, 2015 / Roselina Jiminez

On April 19, 2015, Roselina Jiminez was punched in the face and arrested by one police officer for filming two other officers brutally beat her husband on Ogden Avenue. See *Jiminez et ano. v. City of New York, et al.*, Sup. Ct., Bronx Co., Index No.: 23989/2018E.

217. As a result of this ongoing, widespread practice of NYPD officers interfering with and chilling individuals' First Amendment rights, the City entered into a consent decree in which it stipulated that "it is the policy of the New York City Police Department ... that when a person (or persons) is detained, stopped or arrested in public areas, a person or persons not involved in the conduct for which the first person is stopped or arrested may remain in the vicinity of the stop of arrest as an onlooker or onlookers, subject to the safety of the person stopped . . . the general public, and officers ... None of the following constitutes probable cause for arrest or detention of an onlooker ... (c) Taking photographs; (d) Remaining in the vicinity of the stop or arrest." Stipulation and Order, *Black v. Codd*, No. 73 Civ. 5283, 12 (S.D.N.Y. June 1, 1977). The NYPD's practice and custom of interfering with the rights of individuals who seek to record police activity misconstrues, or in the alternative, violates this consent decree.

218. In 2014, the NYPD put out a FINEST Message (the "FINEST Message") addressing "Recording of Police Action by the Public." The FINEST Message states, "Members of the service are reminded that members of the public are legally allowed to record (by video, audio, or photography) police interactions. These interactions include arrest and other

situations." It further prohibits NYPD officers from "interfer[ing] with a person's use of recording devices to record police interactions." Finally, it acknowledges, "intentional interference such as blocking or obstructing cameras or ordering the person to cease ... violates the First Amendment." FINEST Message from Chief of Department, NYPD to All Commands, SER#: 9881632 (August 6, 2014).

219. Upon information and belief, the NYPD has not instituted any training, monitoring, or supervision to ensure that officers comply with the consent decree and FINEST Message, and refrain from violating First Amendment rights through suppression of videotaping. Upon information and belief, the current training NYPD officers receive does not sufficiently train, monitor, supervise or discipline officers to identify circumstances under which officers are the NYPD's practice and custom of interfering with the rights of individuals who seeks to record police activity violates this FINEST Message.

220. The City's failure to train, monitor, supervise, and discipline NYPD officers to respect individuals' First Amendment rights amounts to deliberate indifference to the constitutional violations committed by the NYPD against individuals including plaintiff ROSALINA JIMENEZ. Given the ubiquity of cameras and smartphones, the City should have anticipated that individuals would attempt to record police performing their official duties in public places. As of the date of plaintiffs arrest the City knew, or should have known, that NYPD officers had a history of mishandling situations and committing constitutional violations where a member of the public attempts to record police activity.

221. The NYPD's practice and custom of interfering with individuals who, without interfering with police activity, record or attempt to record police officers is so persistent, widespread, and pervasive as to constitute a custom or usage and imply the constructive knowledge or acquiescence of the City and its policymakers. The numerous instances of abuse, a small number of which are described above, particularly given that a number of lawsuits have been filed against the City, the NYPD, and NYPD officers demonstrates that the City is, or should have been, aware of the constitutional violations committed by the NYPD. The constitutional violations are so numerous, persistent, and pervasive that the need for corrective action is obvious, and the City's failure to take any such action constitutes deliberate indifference to the violations. This deliberate indifference to the NYPD's widespread deprivation of constitutional rights can be considered a policy, practice, or custom of the City.

222. The City, through its policymakers and agents, condoned, permitted, encouraged, and/or ratified the NYPD practices and customs challenged herein, which allowed NYPD officers to disregard and violate Mr. Desane's exercise of his First Amendment rights when he attempted to record NYPD officers performing their official duties on September 4, 2017.

223. Furthermore, the City, through its policymakers and agents, has been deliberately indifferent to the rights of individuals, such as Mr. Desane, who come into contact with NYPD officers as they record or attempt to record the officers. The City failed to adequately train, monitor, supervise, and discipline its officials, employees, and agents, including the NYPD and the individual NYPD defendants named herein specifically, to respect and not violate the First Amendment rights of individuals such as Mr. Desane. As a result of the City's failure, Mr. Desane's First Amendment rights were violated when he was seized, slammed against the wall and arrested due to his attempt to record police activity.

224. The practices and customs of the NYPD condone or tacitly authorize NYPD officers—acting as employees and agents of the City—to engage in unconstitutional seizures of cameras being used for First Amendment activity. These practices and customs caused Mr. Desane to suffer a violation of his constitutional rights and were the moving force behind the deprivation of Mr. Desane's constitutional rights.

225. Plaintiff's arrest and prosecution effectively chilled and infringed upon his exercise of her First Amendment rights. Thus, Plaintiff suffered injury as a result of the Defendants' conduct.

226. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

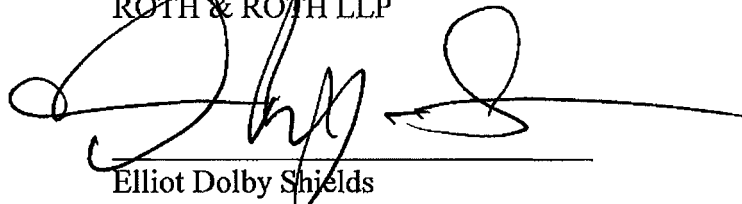
WHEREFORE, and in light of the foregoing, it is respectfully requested that the Court assume jurisdiction and:

- a. Empanel a jury;
- b. Award compensatory and punitive damages awards, each in the separate amounts of \$2,000,000, or such greater amounts as may be set by a jury;

- c. A court order, pursuant to 42 U.S.C. §1988, that the plaintiffs are entitled to the costs involved in maintaining this action and attorneys' fees;
- d. Award appropriate declaratory and injunctive relief;
- e. The plaintiff demands the foregoing relief jointly and severally against all of the defendants, except that the punitive damages demands are, as a matter of law, not recoverable against a municipality and therefore are not made against the City;
- f. Such other and further relief as this court may deem just and proper.

Dated: New York, New York
December 3, 2018

Respectfully Submitted,
ROTH & ROTH LLP



Elliot Dolby Shields
Attorneys for Plaintiff
192 Lexington Avenue, Suite 802
New York, New York 10024
(212) 425-1020

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER DENISTON WILLIAMS, Shield No. 07208, POLICE OFFICER
MICHAEL HEINZ, Shield No. 9897, POLICE OFFICER AVILES, Shield # 3669,
SERGEANT AMANDA SZOT, Police Service Area 8 Precinct, 2794 Randall Ave, Bronx,
NY 10465

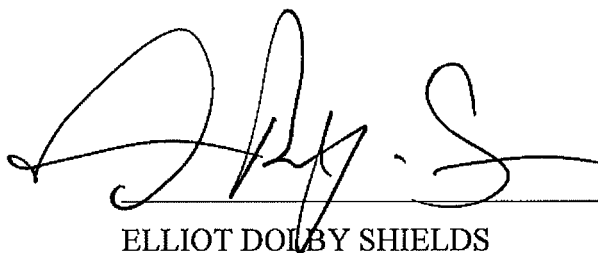
ATTORNEY'S VERIFICATION

ELLIOT DOLBY SHIELDS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a solo practitioner, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York

December 3, 2018



ELLIOT DOLBY SHIELDS